

## Purshotam Dass v. D.V.V.N.L. — installment writ dismissed where settlement already provided post-dated cheques

High Court of Judicature at Allahabad · Division Bench · 30 January 2017 · WRIT - C No. 4203 of 2017 · **Writ dismissed; settlement already provided post-dated cheques for the dues.**

### HEADNOTE

A consumer who sought a writ to pay settlement electricity dues in installments failed where the settlement letter already provided for payment by post-dated cheques. The High Court saw no reason to grant further installment directions and dismissed the petition, noting that Clause 6.14 of the Electricity Supply Code, 2005 remained available.

### FACTUAL SUMMARY

Purshotam Dass filed a writ petition against Dakshinanchal Vidyut Vitran Nigam Limited and two others seeking permission to deposit electricity dues shown in a settlement letter dated 9 December 2016 in installments. That was the only relief pressed at the hearing. Counsel for the distribution company stated that the settlement letter itself already provided for payment of the settled amount by post-dated cheques. No other dispute on the bill or connection was pressed.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.14

installment facility for settlement dues

#### HOLDING

Where a settlement letter for electricity dues already provides for payment by post-dated cheques, the High Court will not grant a further writ directing deposit in installments. The petition was dismissed. In any event the consumer may still avail the installment remedy under Clause 6.14 of the Electricity Supply Code, 2005. ¶ 1